CHAPTER 90 National Commission to Review the Working of the Constitution

The National Commission to Review the Working of the Constitution (NCRWC) was set up by a resolution of the Government of India in 2000. It was an 11-member Commission headed by M.N. Venkatachaliah, the former Chief Justice of India[1]. It submitted its report in 2002.

Terms of Reference

According to the terms of reference, the commission was required to examine, in the light of the experience of the past fifty years, as to how far the existing provisions of the Constitution are capable of responding to the needs of efficient, smooth and effective system of governance and socio-economic development of modern India and to recommend changes, if any. The terms of reference clearly specified that the commission should recommend changes that are required to be made in the Constitution within the framework of parliamentary democracy and without interfering with the 'basic structure' or 'basic features' of the Constitution.

The commission clarified that its task was to review the working of the Constitution and not to rewrite it and its function was only recommendatory and advisory in nature. It was left to the Parliament to accept or reject any of the recommendations.

The commission had no agenda before it. On its own, it identified the eleven areas of study and proposed to examine them. They included the following[2]:

1. Strengthening the institutions of parliamentary democracy (working of the Legislature, the Executive and the Judiciary; their accountability; problems of administrative, social and economic cost of political instability; exploring the possibilities of stability within the discipline of parliamentary democracy).

2. Electoral reforms; standards in political life.

3. Pace of socio-economic change and development under the Constitution (assurance of social and economic rights: how fair? how fast? how equal?).

4. Promoting literacy; generating employment; ensuring social security; alleviation of poverty.

5. Union-State relations.

6. Decentralization and devolution; empowerment and strengthening of Panchayati Raj Institutions.

7. Enlargement of Fundamental Rights.

8. Effectuation of Fundamental Duties.

9. Effectuation of Directive Principles and achievement of the Preambular objectives of the Constitution.